

Pro Seniors: Knowledge Base for Older Adults

Legal Services, Long-Term Care, and Medicare Fraud Prevention in Ohio

I. Frequently Asked Questions (FAQ)

Legal Services & Helpline

Q1: Who can use the Pro Seniors Legal Helpline?

Any Ohio resident aged 60 or older is eligible to use the helpline, regardless of their income.

Q2: Is there a cost for the legal advice?

No. There is no charge for the initial 30-minute telephone appointment with a helpline attorney.

Q3: What topics can I discuss with a helpline attorney?

You can ask about a wide range of civil legal issues, including Medicare/Medicaid, social security, consumer debts, landlord-tenant disputes, and estate recovery.

Q4: How do I schedule an appointment?

Call the Legal Helpline at (513) 345-4160 or toll-free at (800) 488-6070, Monday through Friday, 9:30 AM to 2:30 PM.

Q5: Can Pro Seniors help me write a will?

Yes. They provide a "Do-It-Yourself" Advance Directives Toolkit on their website for simple wills, healthcare powers of attorney, and living wills.

Q6: What if my legal problem is too complex for 30 minutes?

If your case requires more than advice, Pro Seniors may refer you to a staff attorney (for Southwest Ohio residents) or a private referral attorney in your local area.

Q7: Does Pro Seniors handle criminal cases?

No. Pro Seniors focuses exclusively on civil legal matters affecting older adults.

Long-Term Care Ombudsman

Q8: What is a Long-Term Care Ombudsman?

An ombudsman is a dedicated advocate who helps resolve problems related to the health, safety, and rights of people living in nursing homes, assisted living, or receiving home care.

Q9: Can an ombudsman help me choose a nursing home?

Yes. They provide information on specific facilities and guide you through selecting a provider that meets your needs.

Q10: I'm being threatened with eviction from my nursing home. Can you help?

Yes. The Ombudsman program investigates involuntary discharges and works to ensure your rights to stay or transition safely are protected.

Q11: Is the ombudsman service confidential?

Yes. All concerns shared are kept confidential unless you give explicit permission to take action.

Q12: Which counties does the Pro Seniors Ombudsman program serve?

Butler, Clermont, Clinton, Hamilton, and Warren counties in Southwest Ohio.

Medicare & Fraud Prevention (SMP)

Q13: What does the Senior Medicare Patrol (SMP) do?

The SMP helps Medicare beneficiaries prevent, detect, and report healthcare fraud, errors, and abuse.

Q14: How do I know if I've been a victim of Medicare fraud?

Common signs: charges for services not received, "free" supplies offered for your Medicare number, or double billings.

Q15: What should I do if I suspect a scam?

Call the Ohio SMP at (800) 293-4767. They help review statements and report suspicious activity.

Resources & General Info

Q16: Where can I find forms for Power of Attorney?

Pro Seniors offers an Advance Directives Toolkit online that includes forms for Healthcare Power of Attorney and Living Wills.

Q17: Can I get help with Medicaid eligibility?

Yes. Pro Seniors provides fact sheets and legal advice on complex income and asset rules for Medicaid.

Q18: What is "Medicaid Estate Recovery"?

A process where the state seeks repayment from an estate for long-term care costs. Pro Seniors can explain your rights during this process.

Q19: Are there resources for people who don't speak English?

Yes. Forms are available in several languages, including Spanish and Somali, via legal partnerships.

Q20: Does Pro Seniors offer community presentations?

Yes. They provide seminars on fraud prevention, residents' rights, and legal planning for seniors and professionals.

II. Reporting Medicare Fraud: Detailed Steps

1. **Rule Out Errors:** Contact your provider first to clarify unrecognized charges.
2. **Prepare Documentation:** Have your Medicare Summary Notice (MSN) or Explanation of Benefits (EOB) ready.
3. **Contact Ohio SMP:** Call (800) 293-4767 or (513) 458-5523.
4. **Security First:** Never share Medicare or Social Security numbers with unsolicited callers.
5. **Maintenance:** Use a Healthcare Tracker to log appointments for monthly statement verification.

III. Legal Forms & Toolkits

Advance Directives

Healthcare Power of Attorney: Appoints an agent to make medical decisions if you are incapacitated.

Living Will: Specifies end-of-life care wishes (e.g., life support).

DNR (Do Not Resuscitate): Legal order to withhold CPR/intubation in emergencies.

Financial & Estate Planning

Financial Power of Attorney: Grants authority to manage money and property.

Simple Will: Distributes assets after death.

Transfer on Death (TOD) Affidavits: Allows assets (homes/cars) to skip probate.

Consumer Rights

Debt "No-Contact" Letter: Stops creditors from calling you at home.

Information based on Pro Seniors (www.proseniors.org) programs and services. This document is intended for informational and RAG application use.